ments drawn from them are mere inferences deduced from dicta, and not the judgments of the Court on the point. And as for the opinions of the Attornies and Solicitors General, which have been alluded to; however respectable their private opinions may be, they cannot be cited as authorities here. The passage cited from Ro. Abr.(*a*)[1] of the brethren and sisters does not prove that the loss of an integral part dissolves a corporation; it only says that when all the sisters are dead, all acts done by the brethren are void, because they are not a perfect corporation; which implies that they are an imperfect corporation, and consequently not dissolved. *The Bewdley case* proves nothing, for it was never determined; it does not appear to have been argued when the special verdict was found on the second trial. Nothing can be collected from it to shew that the opinion of the twelve Judges was as has been stated by the defendant's counsel. And Powell J.(*b*) could not think the corporation was dissolved for want of capital burgesses, but doubted only whether they could act. So that although an integral part was gone, that learned Judge was of opinion that the corporation was not dissolved. As to *The Banbury case*, although Lord Macclesfield was of opinion that the corporation was dissolved, yet he admitted that it was the opinion of many that the corporation might be revived by a writ under the Great Seal; and no judgment was given there. In *The Tregony case* (*c*) the only question was whether a peremptory mandamus should be granted to proceed to the election of a mayor, the charter day of election being passed, which the Court refused to grant. But the judgment of that case does not affect the present. For when the Court state the consequences of the corporation not proceeding to the election on the charter day, they only say "where they have no power to choose on any other day, their corporation shall be dissolved rather than they should make an election on another day;" and not that by such omission they are ipso facto dissolved. The stat. 11 Geo. 1, c. 11, s. 1, is only declaratory; the words of it are that the corporations would be dissolved, were it not for the interference of the Legislature, and not that they are dissolved. And the statute enables them to do that for themselves which the Crown by its own act could do. And with respect to what was said by Lord Mansfield in the case of *R.* v. *The* [239] *Mayor, &c. of Colchester* (*a*)[2], his opinion proceeds on the idea of all the members of the corporation being gone: that is one of the modes by which it is admitted on all hands that a corporation may be dissolved; and consequently that opinion is not applicable to the present case, where some of the corporators were in existence at the time of granting the charter by the present King. And with respect to the passage cited from 3 Com. Dig. 415, tit. "Franchises," (G. 4) no authority is cited to support it. There is a fallacy throughout the whole of the argument for the defendant on this point: the general argument is that a corporation, when it loses an integral part, shall be dissolved; but the fallacy consists in supposing that by that event alone the corporation is ipso facto dissolved. It may be admitted that such a loss will ultimately occasion a dissolution; since, as the corporation has no power of perpetuating itself, it must in process of time become extinct by the natural death of all its members: but, until that period arrives, the power of reanimating the corporation exists in the Crown. If the principles, on which the compact between the Crown and a corporation is founded, be considered, it will be found to be decisive of the question. In consideration that certain individuals will take upon themselves the government of a particular place, the Crown grants to them certain privileges. Now if the King could deprive the defendant of this right in a case like the present, it would be taking away one of those privileges on condition of which he undertook the burden; and the franchises of the defendant, who is innocent, would thus be forfeited for the negligence of the guilty. In answer to the arguments relative to the construction of the charter of the present King, it is material to consider the King's intention as it arises on the preamble; and from that it appears to have been his intent to re-animate the old corporation, which was to be effected by the introduction of fresh integral parts. Then, having done one thing at the instance of the petitioners, the Crown improvidently did another, which renders the grant void. Or if it be considered that the new corporation was created on the suggestion of the petitioners, the grant is equally void on the ground that the King was deceived by their misrepresentation. *Lord Chandos's case*, 6 Rep. 55, and *R.* v. *Kemp*, 12 Mod. 78.

(*a*)[1] 1 Ro. Abr. 514, J. 1.
(*b*) 1 P. Wms. 211.
(*c*) 8 Mod. 127.
(*a*)[2] Dougl. Elect. Cas.

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In Moor. 45 it is said that, if the King be deceived in his grant, it shall not be allowed to take effect contrary to his intent. [240] Now here the King's intention was to renovate the old corporation; and the allowance of the last charter would be to create a new corporation contrary to his intention. Then it was argued, that if one part of the King's charter be good, and another bad, the latter may be rejected; or if two constructions may be made, by the one of which it may be supported in law, and not by the other, such construction shall be put on the grant as will give effect to it; for which was cited 9 Rep. 131 a. 10 Rep. 67. And the reason given in both instances is, that it is for the honour of the King and the benefit of the subject that it should be so. But in this case it is not for the benefit of the subjects (the old corporators) to be divested of those rights of which they were legally possessed. If the King's grant has a double intent, it shall be void for the uncertainty. Dav. 45. 2 Ro. Abr. 196, F, 1; a fortiori then shall the present grant be void for contradiction. Lord Ch. B. Comyns in his Digest (a)[1] mentions, as a preliminary to all grants, "That every grant by the King of a thing which he may grant, where he is apprised of his interest, and of the cause and circumstances of the grant, will be good." But here the King was not apprised of the circumstances of the grant, as far as respected the granting of a new corporation.

Lord Kenyon, Ch.J.—The general question which arises on this special verdict is, whether the charter of Geo. 3 was accepted? In arguing which some things are clear; when a corporation exists capable of discharging its functions, the Crown cannot obtrude another charter upon them: they may either accept or reject it. In arguing one part of the case, the counsel for the relator took their ground on the convenience of the case, inferring from thence that the law would coincide with it. Now let us consider what is the convenience of the case; and in doing so I do not confine my observations to Helleston alone, but they are applicable to corporations in general, where they have conclusive jurisdictions from the rest of the county. That the magistracy in this borough had ceased, and that the remaining corporators could not exercise those functions which were intended for the government of the borough, are allowed on all hands. Then it cannot be supposed that it must depend on the whim or caprice of three or four individuals, or perhaps one, whether there should be any magistracy in the town or not; especially too in direct opposition to the intentions of the King [241] who, as pater patriæ, is to superintend the administration of justice throughout the country, and who thought it necessary to provide by his charter a sufficient number of magistrates for the government of this place: and as was said by Lord Mansfield (though for another purpose) in the case of *The Mayor, &c. of Colchester* against *Seaber* (a)[2], "Without an express authority, so strong as not to be gotten over, we ought not to determine a case so much against reason." The several inconveniences, which have been pointed out, namely, that the corporation lands would revert to the donor, by which the means of carrying into execution public and charitable trusts would be defeated, and that various privileges would be destroyed, would, if true, have considerable weight. But the great difficulty of the case is solved by this; when an integral part of a corporation is gone, without whose existence the functions of the corporation cannot be exercised, and the corporation has no means of supplying that integral part, the corporation is dissolved to certain purposes. This appears by the case put in Rol. Abr. (b) of the corporation of brothers and sisters: this passage is adopted by Lord Ch. B. Comyns in his Digest (c); another passage equally strong is there added; and though he mentions no authority to support it, yet it must be remembered that his opinion alone is of great authority. But it does not follow that, because the corporation is dissolved to a certain purpose, the King cannot renovate it. Corporations are the creatures of the Crown: and on their dissolution their franchises revert to the Crown. But if the King choose that all their rights shall be revived, it is competent to him to do so, either with the old or new corporators; and thereby no person is injured, nor is any rule of law infringed. And by the new charter the King did not consider the old corporation as dissolved to all purposes; but he granted those rights to a new set of men, and superadded such other powers as he deemed necessary. It has been said that in the case of *The Mayor, &c. of Colchester* v. *Seaber* it was determined that the old corporation was not irrecover-

(a)[1] Com. Dig. 452 (G, 4).
(b) 1 Ro. Abr. 514, L, 1.
(a)[2] 3 Burr. 1870.
(c) 3 Com. Dig. 415.

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ably gone, though they had lost their magistrates; and that is the main ground on which the argument for the relator stands: but I think it is all reconcileable with this doctrine. Lord Mansfield did not say in that case that the corporation could act, or that it was not dissolved to some purposes; but only that the King might renovate it, and when renovated all the former rights would revive and attach on the new corporation, and amongst **[242]** others the right of suing on the bond given to the old corporation. But it is said that, supposing this to be the case, the King was deceived in his grant, and that the grant is consequently void. But I think he was not. The recital in the new charter states all those facts from whence the King's right arose, and from whence he drew his conclusion in point of law, that the corporation was in danger of being dissolved. There is no doubt but that was the case. But there is no one fact there stated to the King which was not true. If the King be called upon to grant some part of his estate, and the interest which he has in it is greater than that which is represented to him, he is then deceived, and his grant is void: but that is not the case here. The old corporation was in danger of being dissolved, and no relief could be administered without the King's interference; his act was necessary to revive the corporation. Then it is said that the new charter cannot take effect, because the King has not used it in words of grant, but only words of confirmation. This, in my opinion, reverts to what I have already said. To some purposes it was dissolved; it was so, if the King did not choose to renovate it. But he did so choose: and by his grant (which it was competent to him to make) he gave power to do such acts as were necessary for the government of the town. Then has this new charter been accepted or not? The majority of the grantees are stated to have accepted it; and the refusal by a few of the body was certainly not sufficient to repel the acceptance of the rest. Therefore judgment must be given for the defendant, who derives his title under this charter.

Ashhurst, J.—Although this matter has in the argument branched out into several points, the principal question is whether at the time of granting the charter the present King had a right to grant it, and whether from any thing contained in the charter it is inadequate to the purpose intended. To determine this it may be proper to consider what is the end and intention of creating corporations aggregate of the kind now under discussion. The principal end is for preserving good order and government within the limits of the towns in which they are established: they are not merely temporary institutions, but are intended to have perpetual succession. Therefore they must have the means of preserving that succession: and whenever a corporation is so far reduced by accident or negligence as to be **[243]** inadequate to the purposes of government, and to have lost the power of continuing that succession from the want of any integral part, it is virtually dead, for it is no longer capable of answering the end of its institution. And, as it was originally created for the public good, and not merely with a view to the private interest of individuals, whenever it can no longer perform those functions which is a condition incident to its incorporation, the Crown ought not, for the sake of a few individuals, to be restrained from exercising its prerogative in granting a new constitution for the benefit of the inhabitants of the place, whose interest the Crown had in view in the original incorporation. This corporation was in that state at the time of the new charter; it could not continue its own existence, nor do any corporate act; then what should in law or reason prevent the Crown from interposing? But it has been contended that the old corporation was not dissolved, because some of the natural members were in existence; and that there cannot be two corporations at one time in the same place with co-extensive powers. I admit the latter part of the position to be true, namely, that there cannot be two such effective corporations in the same place; for, instead of good order, that would only be productive of anarchy; but I deny the former position; for I say when the old corporation was reduced to such a state as to be incapable of continuing its existence, and of doing any corporate act, it was extinct as a body corporate. The case cited from Rolle's Abridgement is express to that effect; for it is there laid down, that if a corporation consist of brothers and sisters, and all the sisters die, the corporation is dissolved. If so, it must follow as a necessary consequence that the Crown has a right to interpose, either by reviving the old corporation, or by granting a new charter. Reason is strongly in favour of this determination; and one case that has reason to support it ought to weigh against many that are destitute of that foundation. To what end should the Crown be

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